FRAUD THEORY & EVIDENTIARY TIMELINE

Aders v. Governing Council of the University of Toronto

Court File No. SC-25-00014152-0000

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I. CASE OVERVIEW

This document organizes the evidentiary record and legal theory in Aders v. University of Toronto. The case begins as a consumer protection dispute over a collapsed TEFL program but the documented record reveals a pattern of institutional conduct that crosses from civil negligence into deliberate misrepresentation and potential criminal fraud.

The central thesis: U of T had institutional knowledge of Pluribus/Kesson insolvency from December 20, 2024. Senior leadership had direct personal knowledge by February 12-13, 2025. Despite this, enrollment continued until June 6, 2025. A coordinated legal containment strategy was implemented. Students were deliberately directed to a bankrupt entity for refunds while U of T retained royalties, recovered creditor assets, and launched a replacement program funded by the same revenue stream it was denying refunds from.

II. TIMELINE PHASE KEY

PRE — Pre-Awareness	Before December 20, 2024. Program operating normally. Negligence argument possible.
AWARE — Knowledge Phase	Dec 20, 2024 — Feb 13, 2025. Institutional and then personal knowledge acquired. Negligence argument weakens.
COVER — Concealment Phase	Feb 13 — June 6, 2025. Post-awareness enrollment continuation. FAQ drafted. Legal strategy coordinated. Criminal threshold crossed.
DEFLECT — Remediation Phase	June 2025 — present. False binary offered. Regulatory exhaustion. Gaslighting. NDA attempt. Legal defence filed.

III. MASTER EVIDENTIARY TIMELINE

Date	Actor	Event	Legal Significance
Dec 17, 2024	Pluribus/Kesson	CCAA Initial Order granted by court	Company enters creditor protection. Program delivery now legally compromised.
Dec 20, 2024	**U of T Accounts Receivable**	**Receives formal Notice to Creditors from B. Riley Farber (Monitor)**	INSTITUTIONAL KNOWLEDGE ESTABLISHED. U of T listed as creditor for $140,520.54. This date is the knowledge threshold.
Jan 23, 2025	Pluribus Technologies	Public bankruptcy announcement	Knowledge becomes publicly available. U of T's internal silence now deliberate concealment.

Date	Actor	Event	Legal Significance
Jan 28, 2025	**Alexander Aders / U of T**	**Plaintiff pays $1,196 USD for 150-hour TEFL program (Order #3762)**	Payment accepted 39 days after institutional knowledge. No disclosure made. Core transaction.
Feb 12, 2025	**Diane Pedreira → Cassidy**	**President of Pluribus emails Cassidy directly confirming CCAA proceedings**	PERSONAL KNOWLEDGE: Cassidy informed directly by source. 'Late March awareness' claim in defence is false.
Feb 13, 2025	**Maggie Xu, Cassidy, Rees-Johnstone**	**Internal email chain: creditor status discussed. Xu confirms 'Enrollment still open as of February 13'**	SMOKING GUN: Named senior staff confirm open enrollment while discussing bankruptcy. Post-awareness enrollment documented.
Feb 13, 2025	Rees-Johnstone	Asks 'what is the status of incoming enrolments and our program risk?' — legal counsel engaged	Executive Director with full situational awareness. Containment strategy begins. Every subsequent decision is post-knowledge.
Mar–Jun 2025	OISE CPL	Enrollment continues. FAQ drafted. Legal strategy coordinated.	4 months of post-awareness enrollment. FAQ language conceals bankruptcy as 'partnership concluding naturally.'
Jun 6, 2025	**OISE CPL**	**TEFL program taken offline. All student access terminated.**	Deprivation completed. Students lose access mid-program with no warning. 130 students affected.
Sep 5, 2025	U of T Ombudsman	Declines jurisdiction — continuing education students excluded	Structural gap confirmed. No internal oversight mechanism exists for this student population.
Sep 8, 2025	**TeachAway**	**Written confirmation: 'OISE now solely owns and operates the OISE TEFL course... including payments'**	Directly contradicts FAQ claim that 'OISE CPL did not collect payments.' U of T controls payment records.
Sep 23, 2025	**Hanadi Abdullah (U of T)**	**Admits in writing: 'A general U of T Accounts Receivable contact received the Notice to Creditors in December 2024'**	INSTITUTIONAL ADMISSION: Named official confirms December 20 knowledge date in writing.
Sep 25, 2025	Shareef Alshareef	Legacy program onboarding: progress not reflected, manual record update, extension promised	Platform failure documented. Extension commitment made but never formalized.
Oct 31, 2025	Plaintiff → Shareef	Follow-up on extension as course closing. Vague reassurance about possible new course shell.	Extension never granted in writing. Course closes. Mitigation attempt documented and failed.
Nov 2025	Program Manager	Onboarding email: 'access expires Oct 31' with vague extension offer requiring plaintiff to contact unnamed instructor	Extension was never real. No timeline, no instructor named, no formal grant. Conditional promise never operationalized.
Dec 8, 2025	Plaintiff	Presidential appeal filed. All administrative remedies documented.	Final institutional opportunity to resolve. Deliberately escalated to highest authority.
Dec 15, 2025	**Michael Cassidy**	**Response on behalf of President: 'You elected to continue program.' Same three options offered.**	FALSE STATEMENT in official correspondence. Plaintiff never completed program. Manufactured consent argument.
Dec 14-16, 2025	Plaintiff	Small Claims filed. RCMP complaint reopened. IC3/FBI complaint filed.	Every criminal and civil avenue pursued simultaneously before U of T responds seriously.

Date	Actor	Event	Legal Significance
Dec 17, 2025	RCMP Central Intake	Instructs plaintiff to file with FBI for foreign complainant referral process	Criminal pathway documented. Foreign national barrier identified.
May 20, 2026	U of T Legal	107-page defence filed	Maximum intimidation posture. Kesson deflection as core argument. 'Late March awareness' claim contradicted by Feb 13 documents.
May 26, 2026	**Leora Jackson**	**Settlement offer: $1,196 USD or replacement programs, with full and final release. June 5 deadline.**	NDA equivalent via 'full and final release.' Same three options as Cassidy's December letter. Filed 6 days after 107-page defence.

III-B. SUPPLEMENTARY TIMELINE — BRIEF EVIDENCE

The following entries document key events established by the Correspondence Brief and Supplementary Document Brief (FIPPA Release 26-R023), filed pursuant to Rule 13.03(2).

Date	Actor	Event	Legal Significance
Dec 1–Feb 28	**Quarterly Report**	**155 students enrolled, $199,551.42 total revenue, $60,580.09 royalties owed to U of T in one quarter**	EXACT FIGURES: Contradicts 'no financial interest' claim. Royalty rate: 30% course sales, 50% module upgrades. U of T financially embedded in every enrollment.
Apr 15, 2025	**Maggie Xu → AR**	**Xu requests forwarding of B. Riley Farber notices. AR confirms: 'We had one in December, see attached'**	Dec 20 notice confirmed to exist in U of T systems, retrievable on demand. Institutional knowledge chain documented.
Apr 16, 2025	Kesson/Pluribus	Notice to Disclaim issued under CCAA s.32(1). Agreement disclaimed effective May 16, 2025.	Formal end of agreement. Annex 1 Item 7 directs refunds for post-disclaimer enrollees — proving U of T knew how to direct refunds.
Apr–May 2025	**Rees-Johnstone → Miller Thomson**	**Explicitly instructs: 'There is no requirement on our end for Pluribus/Kesson to prepare and send an outbound direct communication to learners at this time'**	DECISION NOT TO NOTIFY documented. Silence was affirmative institutional choice, not oversight. Kyla Mahar (opposing counsel) notes OISE staff were 'saying contradictory things.'
May 14, 2025	**Rees-Johnstone (Tab 5)**	**Differential refund policy: refunds issued to post-April 15 2025 enrollees. For Dec 17 2024 – Apr 14 2025 cohort: 'refunds will not be issued'**	CRITICAL: U of T directed refunds for one cohort while denying plaintiff's cohort. Capacity existed. Exclusion was deliberate institutional decision, not incapacity.
Jun 9, 2025	**Rees-Johnstone internal**	**Campus Safety escalation protocol established. FAQ described as legally-reviewed to be repeated. Instructs staff: 'gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal and reputational position'**	INSTITUTIONAL BAD FAITH: Rees-Johnstone frames student complaints as reputational risk to manage, not legitimate grievances. Campus Police referral protocol for persistent complainers.

Date	Actor	Event	Legal Significance
Jun 9, 2025	Rees-Johnstone internal	Suggests complaining student 'may be liable' for defamatory commentary (sic: 'libel' in original) — considers defamation action against student seeking refund	Institution with $4B endowment threatens defamation liability against student seeking $1,196 refund. Reveals institutional posture toward accountability when faced with legitimate complaints.

IV. CONVERGING LEGAL THEORIES

1. Failure of Consideration / Breach of Contract

- Plaintiff paid $1,196 for a 150-hour TEFL certification with Business English and Test Prep specializations
- Program terminated June 6, 2025 — service was never fully delivered
- No-refund clause cannot apply when institution knew delivery was impossible at time of enrollment
- 2016 contract terms cannot govern a 2025 bankruptcy scenario the drafters could not have anticipated

2. Misrepresentation (Civil and Potentially Criminal)

- FAQ frames bankruptcy as 'partnership concluding naturally' — active concealment not passive omission
- Cassidy's 'late March awareness' claim contradicted by his own name on Feb 13 email chain
- 'You elected to continue the program' — false statement in official correspondence
- 'OISE CPL did not collect payments' — contradicted by royalty structure and TeachAway written confirmation
- Jackson's settlement letter reproduces same false Kesson deflection as Cassidy's administrative correspondence

3. Unjust Enrichment

- **U of T received royalties on all enrollment revenue — Quarterly Report (Dec 1 2024 - Feb 28 2025) confirms: 155 students, $199,551.42 total revenue, $60,580.09 royalties owed in ONE quarter alone. Royalty rate: 30% on course sales, 50% on module upgrades.**
- U of T filed as creditor in Pluribus bankruptcy and recovered additional funds
- U of T launched replacement program funded by same revenue stream students are being denied refunds from
- Institution retained learner records, brand, curriculum, and replacement program while disclaiming refund obligation
- Cannot simultaneously claim financial distance from Kesson while having creditor standing in Kesson's bankruptcy

4. Bad Faith Remediation

- Legacy program: progress not reflected in platform, extension never formally granted, promises unkept
- New program: 125 hours vs 150 paid for, missing Business English and Test Prep specializations

- New program explicitly uses AI generation — legacy program explicitly prohibits it (materially different credential)
- Mitigation argument fails: plaintiff attempted legacy program; institution failed every specific commitment
- False binary: plaintiff directed to choose replacement options or receive nothing — manufactured consent

5a. Criminal Fraud — s.380 Criminal Code (Higher Bar)

- Knowledge established: Dec 20 (institutional), Feb 12-13 (personal/leadership level)
- Post-awareness enrollment continuation documented: Xu confirms enrollment open Feb 13 while bankruptcy discussed
- Dishonest act: accepting payment with knowledge service could not be reliably delivered
- Deprivation: students lose money paid for undelivered service
- Intent: coordinated legal strategy implemented before any student communication — reasonable belief and coordinated concealment are mutually exclusive behaviors
- Scale: 130 students, ~$119,600+ total, approaching aggravated fraud threshold under Canadian law
- Per-victim count structure: not one fraud but potentially 130 independent counts
- VULNERABILITY: Defence will argue Diane Pedreira Feb 12 email stated Kesson intends to make post-Initial Order royalty payments — reasonable belief of continuity argument. Counter: 4 months of concealment and coordinated legal strategy is inconsistent with good faith belief.

5b. False Pretenses — s.361(1) Criminal Code (Lower Bar — Stronger Path)

s.361(1): A false pretense is a representation of a matter of fact made by words or otherwise, known by the person who makes it to be false, and made with fraudulent intent to induce the person to act on it.

- **Does NOT require proof of intent to permanently deprive — only that false representation induced payment**
- The FAQ partnership concluding naturally / technologies evolving language is a representation of present fact known to be false at time of drafting
- Rees-Johnstone Feb 13 email confirms leadership knew the partnership was not concluding naturally — it was collapsing under CCAA proceedings
- The false representation induced continued enrollment and payment
- Property (tuition payments generating royalties) was obtained by that false representation
- Each enrollment after FAQ publication is a discrete false pretenses incident
- s.361 is the more appropriate charge than s.380 for this fact pattern — misrepresentation is documented, inducement is direct, knowledge is established

5c. Wilful Blindness Doctrine

Canadian courts (R. v. Sansregret [1985] SCR; R. v. Briscoe [2010] SCR) affirm that wilful blindness is legally equivalent to actual knowledge. A person cannot escape liability by deliberately avoiding information they have a duty to obtain.

- **Rees-Johnstone asked Feb 13: What is the status of incoming enrolments? — she identified the obligation to check**
- If enrollment was not immediately halted pending investigation, the failure to act is wilful blindness not innocent ignorance

- U of T had a contractual and institutional duty to verify program viability before accepting new payments
- Accounts Receivable notification sat from Dec 20 to Feb 13 without reaching OISE CPL — institution cannot benefit from its own information siloing to defeat a knowledge claim
- Deliberate structuring of information flow to maintain plausible deniability is itself evidence of wilful blindness
- Each day of continued enrollment after Feb 13 without student disclosure is a discrete wilful blindness incident

V. KEY CONTRADICTIONS IN DEFENCE

U of T Claims	Documents Show	Source
OISE CPL unaware until late March 2025	Cassidy personally informed by Diane Pedreira Feb 12; internal chain Feb 13 shows leadership awareness	*Feb 12-13 email chain (FIPPA)*
OISE CPL did not collect payments	TeachAway confirms U of T 'solely owns and operates' program 'including payments'; royalty structure documented	*TeachAway email Sep 8; Quarterly Report*
Kesson managed all enrollment and payments	U of T listed as creditor for $140,520.54; royalties owed post-Initial Order per Diane Pedreira email	*Feb 13 email chain; creditor documents*
University cannot process refunds	U of T recovered funds at creditors meeting; holds all learner records; controls payment data	*Creditor recovery documents; TeachAway confirmation*
Plaintiff elected transition pathway	Plaintiff never completed program; every commitment in Shareef correspondence was broken; extension never granted	*Shareef email chain Sep-Oct 2025*
Replacement options are equivalent	New program: 125 vs 150 hours; missing specializations; AI-generated content vs AI-prohibited in legacy; progress reset	*Program comparison; onboarding email*
Plaintiff appropriately redirected by regulators	Ministry explicitly directed plaintiff to court; Ombudsman excluded continuing education students	*Ministry letter Feb 20; Ombudsman response*
University unable to process refunds	Refunds were issued to post-April 15 2025 enrollees. Only plaintiff's cohort (Dec 17 2024 - Apr 14 2025) was explicitly excluded. Capacity existed; exclusion was deliberate.	*Tab 5, Miller Thomson thread May 2025*
No misrepresentation — transition was unforeseeable	Rees-Johnstone June 9 internal email explicitly instructs staff to 'gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal and reputational position' — awareness of misrepresentation exposure documented	*Tab 6, FIPPA June 9 email chain*

No decision was made to withhold learner notification	Rees-Johnstone explicitly told Miller Thomson LLP 'there is no requirement on our end for Pluribus/Kesson to prepare and send an outbound direct communication to learners' — silence was an affirmative institutional decision	*Tab 4, Miller Thomson thread May 22 2025*

VI. NON-ECONOMIC HARM CATEGORIES

The $1,196 claim amount represents only direct economic loss. The following categories of harm flow directly from U of T's post-awareness conduct and exceed the claim amount:

- **67 hours of ENGin volunteer service rendered professionally unanchored by credential collapse**
- Fulbright application window foreclosed by June 2025 shutdown during active candidacy preparation
- International teaching career trajectory disrupted at critical transition period
- Motivational collapse in professional teaching field following deliberate institutional obstruction
- Neurological costs of repeated program restarts given documented TBI (October 2024 car accident)
- 9+ months of cognitive and time resources spent on regulatory and legal remediation
- Portable income stream for Besançon transition period destroyed
- Trust in Canadian institutional credentials as foundation for international career plans

VII. COMPLETE REGULATORY EXHAUSTION

Every available remedy was pursued before filing. U of T's claim of 'appropriate redirection' mischaracterizes agencies that either pointed back at U of T or directed plaintiff to court:

Agency	Reference	Outcome
Canadian Anti-Fraud Centre	*#2025-81555*	Complaint filed. Referred to RCMP.
RCMP Central Intake	*Case #2025-1409258*	Closed as civil matter; Dec 2025 instructed FBI referral for foreign complainant
IC3 / FBI	*Submission ID: e003ea49...*	Wire fraud complaint filed Dec 17, 2025 per RCMP instructions
Consumer Protection Ontario	*CAS-118208-X0W3T*	Declined jurisdiction. Referred to Ministry of Education.
Ministry of Colleges	*Rachel Houpt response Feb 20, 2026*	Cannot intervene individually. Universities responsible for refund decisions.
Ministry of Public & Business Service	*Received Sep 2025*	Directed plaintiff to court and Ministry of Attorney General.

Ontario Ombudsman	*Sep 5, 2025*	Declined jurisdiction — continuing education students excluded.
U of T Internal Ombudsman	*Sep 5, 2025*	Same exclusion — only degree-seeking students covered.
U.S. Consulate Toronto	*American Citizen Services*	No jurisdiction over consumer disputes with foreign institutions.
University President	*Dec 8, 2025*	Redirected to Cassidy who responded with false statements.

VIII. STRATEGIC NOTES

FIPPA Strategic Reserve

- Defence filed without knowledge of FIPPA Release 26-R023
- February 13 email chain directly contradicts multiple defence claims
- Information asymmetry: plaintiff holds documents that dismantle their core narrative
- Documents may be sanitized — solicitor-client privilege exemptions likely withheld most sensitive communications
- Superior Court discovery would reach what FIPPA could not

Judicial Referral Request

- Small claims cannot rule on criminal fraud but judge can make observations on the record
- Request judicial referral to Toronto Police Service — bypasses foreign complainant barrier
- A judicial referral carries institutional weight that private complaint cannot
- Primary criminal theory: s.361(1) false pretenses — lower intent threshold than s.380, directly fits FAQ misrepresentation pattern
- Secondary theory: s.380 fraud — per-victim count structure, 130 counts, approaching aggravated fraud threshold
- Wilful blindness doctrine: Rees-Johnstone identified enrollment risk Feb 13 — failure to act is not innocence
- Judicial referral transfers criminal determination to appropriate domestic authority — bypasses foreign complainant barrier entirely

IX. CORE LEGAL QUESTIONS THE DEFENCE DOES NOT ANSWER

The defence engages a narrow transactional axis — who processed the payment — while leaving the following foundational questions unaddressed. These are questions only a judge can answer. No regulator could address them, which explains why every agency declined jurisdiction.

- **What obligation does U of T have when a third-party partner goes bankrupt and U of T's brand is the primary reason students purchased the product?**
- Was the contract void at purchase? Plaintiff paid January 28, 2025 — after the CCAA Initial Order (December 17) and after U of T received Notice to Creditors (December 20).

- Can U of T profit from royalties while averting refund liabilities when the program collapses? Unjust enrichment cannot coexist with disclaimer of financial relationship.
- Was there an obligation to inform students in February 2025 when leadership had personal knowledge? Rees-Johnstone identified enrollment risk as a key concern on February 13.
- Does the information gap between December 2024 and February 2025 constitute negligence? And if so, does that negligence absolve them of post-awareness obligations? It does not.
- By recovering assets in the bankruptcy proceedings, did U of T assume the corresponding liabilities? You cannot selectively inherit the financial upside of a collapsed partnership while disclaiming the obligations.
- The defence strategy reduces plaintiff to a member of the public with no claim against the institution. But the receipt header reads OISE University of Toronto TEFL Certification — U of T is presented as the primary party, TeachAway as subordinate.

X. PLAINTIFF CHRONOLOGY — GOOD FAITH DOCUMENTED

The following sequence demonstrates plaintiff acted in good faith at every stage. The institution's mitigation argument fails against this documented record.

- **Purchased based on institutional trust — U of T brand on receipt, premium price implied platform stability**
- Attempted non-linear completion strategy due to documented TBI — completing modules and tests while deferring written assignments for when cognitive capacity improved
- Had completed approximately 30-40% of individual modules before June 6 shutdown using this medically-adapted strategy
- Program shutdown eliminated all progress — legacy platform only tracked Units Complete not individual module completion
- Accepted legacy program despite no disclosure that prior progress would not transfer — implied continuity was false
- Actively engaged with Shareef on September 25, 2025 — documented progress restoration attempts
- Sought refund through every available channel before filing — Dean, Consumer Protection, Ministry, RCMP, IC3, U.S. Consulate, President
- Filed Form 7A in response to Cassidy December offer — this constitutes a response. Defendant cannot claim plaintiff failed to respond.
- Filed Small Claims December 14, 2025 only after Presidential appeal was redirected and responded to with false statements
- The trap: if plaintiff had not attempted legacy program, U of T would argue failure to mitigate. Plaintiff attempted it and U of T failed to deliver. Damned if you do, damned if you do not — which is itself evidence of bad faith remedy design.

XI. RECEIPT AS PRIMARY EVIDENCE — MERCHANT OF RECORD

The payment receipt (Order #3762, January 28, 2025) is the foundational document. A reasonable person reading it would conclude U of T is the primary party:

- **From field reads: OISE University of Toronto TEFL Certification**
- TeachAway email address appears as subordinate sender — not as merchant of record
- U of T logo prominently displayed
- No disclosure that payment went to a third party
- No disclosure of CCAA proceedings active at time of purchase
- Defence claim that Kesson was merchant of record is contradicted by the document a reasonable consumer would rely on
- The reasonable consumer standard does not require plaintiff to investigate corporate structures behind a branded receipt — the brand on the receipt creates the reasonable expectation of institutional accountability
- **Ontario Consumer Protection Act 2002 s.14: a representation that the supplier has an affiliation with another person that the supplier does not have is a false or misleading representation. U of T's receipt implied institutional delivery. Actual delivery was by an insolvent third party operating under CCAA protection at time of purchase.**
- The CPA s.14 false affiliation argument applies independently of contract law — it operates at the consumer transaction level and does not require proving a direct contractual relationship between plaintiff and U of T
